

19. S-PR-0013910 In Re the Ernestine Contreras Garcia Liv Trust

Petition to suspend trustee, compel account, appoint interim trustee

Appearance is required for continued hearing on petition to suspend trustee, compel trustee account, and appoint interim trustee.

Trustee account

Appearance is required for continued hearing on trustee account.

Clarification is needed: objections to a purported amended account were filed. No amended account has been filed or set for hearing.

Missing notice of hearing re original trustee account. Missing service of notice of hearing.

Missing verification to account. Prob.C. § 1021.

Account, as filed, does not comply with any format or content requirements of Prob.C. § 1060–1064: missing opening property on hand schedule in required form; missing other charges schedules (receipts, gains on sale); missing credits schedules (disbursements, distributions, losses on sale); trustee's time log is not part of an accounting; trustee may not demand payments from Ricardo Garcia through an account; missing final property on hand schedule.

Missing required trustee report. Prob.C. § 1064.

The account, as filed, cannot be approved.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

Ex parte application to advance and adjudicate petition for instructions

Appearance is required for hearing on ex parte application to advance and adjudicate petition for instructions.

20. S-PR-0014170 In Re the Estate of Nelson, Shirley J.

Appearance is required for hearing on amended petition to determine succession to primary residence.

Missing notice of hearing for amended petition. Missing 15 days' service of notice of hearing for amended petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing required allegations at ¶ 9a(3)–(4) (registered domestic partner) and (7)–(8) (issue of predeceased child(ren)).

Missing Attachment 11, including legal property description, APN, and facts showing the residence was decedent's primary residence.

21. S-PR-0014209 In Re the Estate of Lawson, Linda Lee

Will is not self proving (witnesses did not execute any declaration or affidavit).
Missing proof of will.

Missing residence information for proposed executor (¶ 3h).

Missing required allegations at ¶ 5a(3)–(4) (RDP).

Clarification is needed as to person identified in ¶ 8 as "adopted grandson," which is insufficient to describe the relationship with decedent.

22. S-PR-0014210 In Re the Estate of Taylor, Susan C.

Missing original will. Prob.C. § 8200(a).

Missing declaration re terms of beneficiary trust. Local rule 80.2.1.

Missing residence information re proposed executor (¶ 3h).

23. S-PR-0014212 In Re the Arlene M. Lane Liv Trust

Missing sufficient notice of hearing for petition to approve 1st / final trustee account. Notice as states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

24. S-PR-0014213 In Re the Estate of Wallace, Gloria O'deal

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

25. S-PR-0014214 In Re the Alan & Carolyn Meyer Trust

It is recommend the petition to determine trust property be denied.

Relief as to the Wells Fargo account is not available under *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the account is not described in any way in the trust or its schedules.

Relief is not available under *Kucker v. Kucker* (2015) 92 Cal.App.4th 90 because the trust and trust schedules do not include any general assignment language reaching all personal property.